

# Asset Transfer Cases Research Workplan

## Domestic and Cross-Border Transfers of Confiscated Criminal Assets

Artem Radin

2026-03-04

### 1 Objective

Prepare a short, evidence-based note focused on **real cases where criminally confiscated or forfeited assets were actually transferred** after recovery.

The document should no longer focus mainly on the abstract legal pathway. It should focus on **how asset transfer worked in practice**, especially:

- transfers to victims or public beneficiaries within the same country;
- transfers from one state to another through cross-border cooperation;
- the legal act, agreement, or judgment that made the transfer possible.

! Main shift in scope

The next paper should answer: **which assets were transferred, to whom, under what legal mechanism, and after which decision?**

### 2 Core Research Tasks

1. Identify at least **6 to 8 concrete transfer cases** involving confiscated criminal assets.
2. Split the cases into **two blocks**:
  - domestic transfers inside one country;
  - cross-border returns or sharing with another state.
3. Use **official sources first**: ministries, prosecutors, courts, asset recovery offices, and official reports.
4. For the strongest cases, locate the **judgment, forfeiture order, settlement, or intergovernmental agreement** that preceded the transfer.
5. Extract the same factual fields for each case so the final note is comparable and easy to cite.

### 3 Deliverable Structure

The new research note should be built in this order:

1. Short introduction explaining the focus on actual transfers of assets.
2. Domestic transfer cases.
3. Cross-border transfer cases.
4. Switzerland as a dedicated subsection.
5. Short section on the legal mechanisms that recur across cases.
6. Brief conclusion on what model may be relevant for Ukraine.

### 4 Case Selection Criteria

Use a case only if most of the following can be verified:

- the assets were not merely frozen, but **confiscated, forfeited, restituted, repatriated, or otherwise transferred**;

- the recipient is identifiable;
- the amount is stated or can be reliably approximated;
- the transfer mechanism is visible from an official source;
- there is a traceable legal step before transfer, such as a court ruling, confiscation order, settlement, or bilateral/tripartite agreement.

Avoid weak examples where reporting only says that assets were “targeted”, “seized”, or “under investigation”.

## 5 Priority Research Streams

### 5.1 Stream 1: Domestic Transfers to Victims or Public Beneficiaries

Look for cases where recovered assets were distributed:

- directly to victims in criminal proceedings;
- to a state compensation fund;
- to a designated domestic public-interest project after confiscation.

Priority jurisdictions:

- Germany
- United States
- United Kingdom
- France
- Italy

### 5.2 Stream 2: Cross-Border Returns or Asset Sharing

Look for cases where one state returned confiscated assets to another state or to a monitored beneficiary vehicle.

Priority jurisdictions:

- Switzerland
- United States
- United Kingdom
- France
- Netherlands

## 6 Switzerland Track

Management specifically flagged Switzerland. This should be treated as a separate mini-study.

Questions to answer:

- Which official Swiss authority describes the legal basis for returning illicit assets abroad?
- What official figure supports the claim that Switzerland has returned more than CHF/USD/EUR 2 billion in illicit assets?
- Which cases best illustrate the Swiss model?
- Was the transfer made directly to the recipient state, or through a monitored program with an international organization?

Priority examples to verify first:

- Abacha assets returned to Nigeria
- Assets linked to Kazakhstan / BOTA-type restitution mechanisms
- Any Swiss Federal Council or FDFA / FOJ materials summarizing total returned assets

## 7 Case File Template

For each case, fill in the following fields:

| Field              | What to capture                                                                |
|--------------------|--------------------------------------------------------------------------------|
| Case name          | Common short title                                                             |
| Countries involved | Recovering state and receiving state, if any                                   |
| Crime type         | Corruption, embezzlement, money laundering, tax fraud, sanctions evasion, etc. |
| Asset type         | Cash, bank funds, shares, real estate, luxury assets, mixed proceeds           |
| Recovery stage     | Confiscation, forfeiture, settlement, restitution, repatriation                |
| Authority          | Court, prosecutor, ministry, asset recovery office                             |
| Legal basis        | Statute, court order, settlement, agreement                                    |
| Recipient          | Victims, state treasury, compensation vehicle, foreign state, monitored fund   |
| Amount             | Amount transferred and currency                                                |
| Transfer date      | Exact or approximate date                                                      |
| Official source    | Link to official statement or report                                           |
| Judicial source    | Link to judgment or order, if available                                        |
| Why it matters     | One sentence on the legal or operational lesson                                |

## 8 Priority Cases To Collect First

These are the first cases to validate because they are frequently cited and likely to produce usable official materials:

| Category     | Case to verify                                 | Why start here                                                      |
|--------------|------------------------------------------------|---------------------------------------------------------------------|
| Cross-border | Switzerland -> Nigeria (Abacha)                | Canonical example of monitored repatriation                         |
| Cross-border | UK -> Nigeria (Ibori)                          | Clear transfer agreement and public-benefit framing                 |
| Cross-border | US -> Malaysia (1MDB)                          | Strong DOJ documentation and multiple return tranches               |
| Cross-border | Switzerland -> Kazakhstan                      | Useful for restitution-by-program rather than direct state transfer |
| Domestic     | Germany victim compensation after confiscation | Direct relevance to current Germany-focused work                    |
| Domestic     | US compensation / remission practice           | Strong official guidance on victim returns                          |

## 9 Source Hierarchy

Use sources in this order:

1. Court decisions, court databases, confiscation orders.
2. Prosecutor or ministry press releases.
3. Official annual reports of asset recovery offices or justice ministries.
4. Official international organization materials where they administer or monitor the transfer.
5. Reputable secondary reporting only to fill gaps or locate the primary source.

### Working rule

If a media source describes a transfer, use it only as a lead. The case should move into the final draft only after confirmation from an official source.

## 10 What To Extract From Judgments

For the strongest cases, add a short legal note covering:

- what the court or competent authority formally decided;
- whether the decision finalized confiscation or merely preserved assets;
- how that decision opened the door to restitution, repatriation, or transfer;
- whether any later agreement was still needed to direct the assets to the final recipient.

Target output per case:

- a 2 to 4 sentence summary of the judgment or confiscation decision;

- one sentence linking that decision to the later transfer.

## **11 Writing Standard For The Final Note**

Each case study in the final note should answer five short questions:

1. What assets were transferred?
2. Who received them?
3. What legal step came before the transfer?
4. What mechanism governed the transfer?
5. What lesson does the case offer for a future Ukraine-oriented model?

## **12 Immediate Next Steps**

Complete the work in this order:

1. Build a working table with 10 to 12 candidate cases.
2. Mark which cases already have official confirmation of transfer.
3. Pull the top 5 official source sets.
4. For the top 3 cases, find the underlying judgment or operative legal instrument.
5. Draft the new 3-page note only after the case table is populated.

## **13 Proposed Output Package**

The workstream should produce:

- one short note focused on actual transfer cases;
- one background table of cases and sources;
- one short annex with links to judgments, orders, or agreements.

## **14 Internal Completion Standard**

The new note is ready only if:

- it contains both domestic and cross-border examples;
- Switzerland is covered as a separate subsection;
- each main case has at least one official source;
- at least several cases include the legal decision or agreement that preceded the transfer;
- the conclusion explains which transfer models are most relevant for Ukraine.